Annex Dis 3.

No 132.

Mr Pratt

U. S. Legation, Japan,
Tokei, October 8, 1874.

Mr Bingham
to the
Hon. Secretary of State.

Subject.

Two Notifications by Japanese govt.:
1st promising safety to Chinese residents in Japan, & 2d, explaining the action of Japan in the Formosan affair. Japan, while desirous of peace, is preparing for any other emergency. It being reported that Watson is about to return to Formosa Mr Bingham requests the M. F. A. to enforce the order of the Japanese govt. detaching Watson

from service in the Japanese expedition against Formosa.

Consuls at Shanghai prepare a note identical to Ministers at Peking, looking to protection of foreigners in case of war, & Mr Bingham in a note to Mr Seward approves the same.

Upon request of M.F.A. Mr Bingham assures him that he will report the employment of Chinese at the Legation.

Enclosures:

1. Notification to Chinese – Sept. 29, 1874.
2. " as to Formosa. " 28 "
3. Mr Bingham to the M.F.A. Oct. 1. "
4. Mr Seward to Mr Bingham, Sept. " "
5. Note identical with above.
6. Mr Bingham to Mr Seward, Sept. 25 "

No 132.

U. S. Legation, Japan.

Tokei, October 8, 1874.

FOREIGN Pacific 1875

Sir:

I have the honor to transmit herewith for your 132 information a copy of a Notification by the Japanese Government to Chinese subjects resident in Japan, Enclosure No 1) informing them that in the event of war between Japan and China they shall not be harmed by this Government, unless they engage in

Hon Hamilton Fish,
Secretary of State,
Washington, D.C.

in trade' contraband of war,
acts as spies or do other in=
jury to this country.
I have also the honor to en=
close a copy of another
3/132 Notification (Enclosure No 2,)
which has reference to the
Japanese expedition to Formosa,
the occurrences there between
the Japanese forces and the
efforts at negotiation by
the Ministers sent to China
by Japan, &c. It is to be
observed in this last Notification
that while it is said that
the Emperor desires a peaceful
result by negotiation, it is
clearly stated therein that
preparations are being made
for

for war in the event of a
failure to settle the difficulty
by negotiation.

A notice appearing
in the papers that Mr
Wasson, the American citizen
mentioned in my despatches
of April last, was recently
in Nagasaki awaiting orders
to report to General Saigo,
the Japanese Commander in
Formosa, I took occasion to
request the Minister for
Foreign Affairs, by a despatch
of date the 1st inst. (Enclosure
3/132 No 3,) to notify Mr Wasson
of the fact hitherto commu=
cated to you, that he (Wasson,)
was detached from that service,
and

and should not proceed to Formosa.

I have the honor to further inform you that in the latter part of September I received from Mr Seward
4/132 at Shanghai a despatch of date the 1st ultimo, enclosing
5/132 a note identical agreed upon by the foreign consuls at Shanghai for the protection of foreign commerce &c. in the event of hostilities between Japan and China (Enclosures 4 & 5.)

To this communication I replied in a letter (Enclosure No 6)
6/132 dated the 25th ultimo.

I respectfully submit the same for your consideration, hoping that my action may meet

meet your approval and especially desiring your instructions in the matter.

I have this evening received a communication from the Minister for Foreign Affairs, asking me what Chinese, if any, are in the service of this Legation, and requesting me to notify him in future if any Chinese shall be employed at the Legation or discharged therefrom.

To this I have replied that there are no Chinese in the employ of the Legation at present, and that should any be employed therein or discharged therefrom in the

the future I shall inform him.

I am, Sir,

Your obedient Servant,

H. A. Brisham

No 132.

Enclosure No 1.

From the "Japan Weekly Mail".

October 3. 1874.

CHINESE SUBJECTS.

(TRANSLATION.)

*(From the "Nisshin Shinjishi.")*

The wicked inhabitants of Formosa have in years murdered and plundered several tens of our Japanese subjects. Steps have, therefore, been taken to punish these offences, and to protect our subjects from injury in future. To this the Chinese Government have objected, and our Government has therefore despatched officials to discuss this matter, but no conclusion has yet been arrived at. We hear that you, the Chinese subjects, resident in this country, are unnecessarily apprehensive lest it should be impossible to preserve peace between the two countries, and that, if war broke out, your persons would be imprisoned, and your property plundered and confiscated, and we are informed that you torment yourselves with all kinds of anxieties. If this is truly the case, your condition is a very pitiable one. But even if war should unavoidably break out, in what are you, the Chinese subjects resident here, to blame? Except in the case of persons guilty of contraband trading, spying or doing injury to this country connected with the war, the Government of Great Japan will neither imprison nor plunder you.

Take careful note of this, obey the instructions of this Government, pursue your occupations in peace, and do not allow yourselves to be carried away by excitement.

(The above was notified on the 29th September to Chinese subjects resident in Japan in the Chinese and Japanese languages.)

(signed.) Sanjo Sanetomi

Daijo Daijin

[Prime Minister.]

No 132.

Enclosure No 2.

Copy.

Notification No 127.

To the Iu, Sho, Shi, Fu & Ken.

An expedition against the barbarous part of Formosa was announced in Notification No 65 of May last, and on the 22d of that month, the Commdr-in-chief, Saigo Yorimichi, arrived there. The troops had arrived some days previously. They entered the territory of the savages and were exploring its lands and waters when they were suddenly fired upon by them. Our troops then attacked them & put them to rout. Eighteen heads of villages gave in their submission one after another, & almost the whole

whole savage territory was reduced to peace. We were thereafter engaged in preparing preventive measures for the future, when the Chinese Govt. persistently objected. Yanagiwara Sakimitsu, our Envoy Extraordinary & Minister Plenipotentiary to that country, was therefore instructed to discuss the matter with the Chinese Govt., and numerous written communications and conferences were held. The further special step was then taken of despatching to China Okubo Toshimichi as High Commissioner Plenipotentiary.

It is of course the aim of His Majesty that these negotiations shall result in a peaceful settlement and in the preservation of amicable relations, but preparations are at the same time being made to meet any emergency in case circumstances leave us no other alternative than to do so.

His Majesty will give you his further commands with reference to the result of the negotiations to be conducted henceforward by our High Commissioner to China.

(signed) Sanjo Saneyoshi,
Daijo Daijin.

28th September, 874.

No 132.

Copy.

No 84.

Enclosure No 3.

United States Legation,
Tokei, Oct. 1, 1874.

Your Excellency:

I called at your office yesterday for the purpose of acquainting you with the fact that Mr Watson, a citizen of the United States, hitherto referred to by Y. E. in your No 26 of date the 22d April last, addressed to me, & who, as Y. E. then informed me, had by the action of Y. E's govt., upon my request, been detached from service under the Japanese govt. in the Formosan Expedition, is reported in the "Japan Gazette" of the 29th ult.

H. E. Terashima Munenori,

ult. to be "in Nagasaki, awaiting
instructions to resume his
"position on Genl. Saigo's staff."
and "will probably sail for
"Formosa in a few days".
I have the honor to further in-
form Y. E. that I communicated to
my govt. copies of my communi-
cations heretofore made to
Y. E. in which I protested against
the employment of U.S. citizens
and vessels in the Japanese
expedition against Formosa &
also a copy of Y. E's despatch
of the 22d of April, setting forth
the action of Y. E's govt. as above
stated, to which my govt. has
replied that the proceedings
taken by me to detach the
citizens of the U.S. and the
steamer "New York" are approved.
Not doubting that the
instructions heretofore issued,
as stated by Y. E., for the de-
tachment of Albert Watson and
the

the other citizens of the U.S. named
in Y. E's despatch of the 22d of
April, were in accordance with
the treaty obligations subsisting
between the U.S. & Japan, and
feeling quite assured that
it has been and is the pur-
pose of Y. E's govt. to carry the
same out in good faith, I
beg leave to respectfully re-
quest that Y. E. will notify
Albert Watson of the instructions
issued by your govt. detaching
him from service in the
Japanese expedition against
Formosa, to the end that
he may not proceed to Formosa,
in violation alike of the
instructions of Y. E's govt. and
of the laws of his country.
I have the honor to be
Your Excellency's
obedient servt.
(signed) Jno A Bingham

No 132.

Enclosure No 4.

Copy.

No 24.

United States Consulate General,
Shanghai, 1st Sept, 1874.

Hon. John A. Bingham,
U. S. Minister to Japan,
Yedo.

Sir:

I have the honor to hand you
herewith a draft of a despatch
which has been addressed by
the several Consuls at this
port to their several Ministers
at Peking, looking to the need
of action to secure the
safety of our commerce, and
of our Settlements in the
event of war between China
and Japan.

I am, Sir,
Your obed't. servant,
(signed) Geo. F. Seward
Consul General.

No 132.

Enclosure No 5.

Copy.

Draft of an identical note to be sent by each Consul to his Ministerial Representative at Peking.

Sir:

The probability of a war between China and Japan having of late attracted much attention, and the possibility of such a contingency not by any means having passed over, it has occurred to myself and some of my colleagues to consider what would be the position of the foreign settlements of Shanghai in such an unfortunate event, and how far it would be expedient to adopt such precautions as may render that position a comparatively

comparatively safe one.

It does not need any Extraordinary foresight to predict that Shanghai, from its importance as a commercial centre, and from its proximity to one of the few arsenals which China possesses, will become a focus of attack in case of hostilities being declared, and in that event the foreign settlements will be at once exposed to extreme danger, inasmuch as they stand, (that portion called British more especially,) exactly in a quarter, where any outworks necessary to cover the city from hostile approach by the river must be constructed. No move has as yet been made by the Chinese toward the utilization of this strategical position, but they may at any moment see fit to occupy it, and should they do so, and hostilities supervene, the consequences to neutral life and property may be very serious.

The conclusion appears to myself and colleagues obvious, that, if such a sacrifice can be in any way averted, no effort ought to be left untried to avert it; and the alternative we would venture to propose is, that advantage should be taken of the presence in Peking of a Japanese Minister Plenipotentiary to negotiate for the neutralization of the ground covered by the foreign settlements, and a stipulation that nothing shall be done on either side to endanger the safety of the residents therein or of the property in their keeping. The Taotai of this place, it is believed, will be quite willing to give his consent to this proposition, and I beg to submit it to Y.E. in conjunction with such of my colleagues as are more directly interested, and each of whom has addressed an identical note to his

his Minister, in the hope that the scheme may meet with your favorable consideration.

I may refer here to the 26th Article of the United States Treaty with China, which provides for the immunity of American commerce in case of war, and to suggest that such further negotiation may be undertaken with the Japanese as will render this provision operative as far as they are concerned; and in this connection it may be mentioned that the Chinese are likely to obstruct the Woosung Bar in case of war unless some means are adopted to prevent them taking this course.

Various and serious questions, it must be confessed, will be involved in the adoption of the proposed measures, but as these must of necessity occur to your mind, and their discussion scarcely comes within my province, I prefer to submit the simple proposition free of all observation or remark. My colleagues agree with me that it is also beyond our province to propose that any arrangements arrived at shall embrace all the foreign settlements in China and Japan, but it may not be amiss to point out how obviously desirable such an extention would be.

No 132.

Enclosure No 6.

Copy.

No 102.

United States Legation,
Tokei, Septbr. 25, 1874.

Geo. F. Seward, Esq.,
&c. &c. &c. Shanghai.

Sir:

I have to acknowledge the receipt of your despatches 23 and 24, dated the 7th August and the 1st September, respectively, and tender you my thanks for the same.

The Regulations of the Consular Courts in China, enclosed with your No 23, upon such examination as I have been able to give them, seem to me satisfactory and worthy of consideration here.

The note identical, enclosed in your No 24, I

Consider

considered to be called for in the present exigency, and, on should war be declared between Japan and China, the adoption of the same should be insisted on by the Foreign Representatives accredited to both nations. I have this to suggest that the foreign settlements, or places exclusively occupied by foreigners, in each empire should be declared by the sovereign authority of each inviolate in the event of war, and should be respected alike by the forces of Japan and China.

What is said in the note identical touching the 26th Article of the United States treaty with China, is a matter of the first importance to the people of the United States, and it shall

shall be my pleasure, as it is my duty, to cooperate with you and with all the representatives of our common country, in securing to our people the full benefit of that Article, if, unhappily, a public, solemn war shall obtain between Japan and China.

I am, Sir,
Your obedient servant,
(signed.) Jno. A. Bingham.